

STATE OF MICHIGAN
IN THE THIRD JUDICIAL CIRCUIT FOR THE COUNTY OF WAYNE
FAMILY DIVISION, DOMESTIC RELATIONS

ADRIENNE MARJORIE ROCKENHAUS,
Plaintiff,

v.

CONRAD ALAN ROCKENHAUS,
Defendant.

Case No. **26-104594-DO**

Hon. **Yvonna C. Abraham**

DEFENDANT'S MOTION FOR CHANGE OF VENUE

NOW COMES Defendant, **Conrad Alan Rockenhaus**, appearing pro se, and respectfully moves this Honorable Court for an Order changing venue of this divorce action to the Washtenaw County Circuit Court, 22nd Judicial Circuit, or in the alternative, dismissing this action in favor of the prior-filed Washtenaw County proceeding. In support thereof, Defendant states as follows:

I. INTRODUCTION

1. On April 9, 2026, Plaintiff Adrienne Marjorie Rockenhaus filed a Complaint for Divorce in the Wayne County Circuit Court, Third Judicial Circuit.
2. On April 10, 2026, one day later, Defendant Conrad Alan Rockenhaus independently filed a Complaint for Divorce in the Washtenaw County Circuit Court, 22nd Judicial Circuit, assigned Case No. 26-737-DO before the Honorable Darlene A. O'Brien.
3. Venue for this divorce action is improper in Wayne County. Washtenaw County is the proper venue under Michigan law, and this Court should transfer the matter or dismiss this action in favor of the Washtenaw County proceeding.

II. FACTUAL BACKGROUND

4. The parties were married and maintained their last shared marital domicile in Washtenaw County, Michigan. From 2024 through September 30, 2025, the parties resided together at 2468 Fernwood Avenue, Ann Arbor, Washtenaw County, Michigan, a period of approximately eighteen months.
5. On or about September 1, 2025, a residential lease commenced at 26695 Ross Drive, Redford Township, Michigan 48239 (Wayne County). However, both parties remained residents at the Fernwood Avenue address in Washtenaw County through September 30, 2025.
6. Plaintiff began transitioning to the Ross Drive address in Wayne County in the first week of September 2025, while the parties maintained the Fernwood Avenue residence through the end of the lease on September 30, 2025. The Fernwood Avenue residence in Washtenaw County remained the parties' primary shared marital domicile throughout this

transition period.

7. Defendant has continuously resided in Washtenaw County since 2024. Defendant's current address is 1690 Brookfield Drive, Ann Arbor, Michigan 48103. Defendant has resided in Washtenaw County for well in excess of 180 days immediately preceding the filing of his Complaint for Divorce.
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III. LEGAL ARGUMENT

A. Venue Is Improper in Wayne County Under MCL 552.9

8. Michigan's divorce venue statute, MCL 552.9, provides that a complaint for divorce shall be filed in the county where one of the parties has resided for not less than 10 days immediately preceding the filing. While Plaintiff may satisfy the bare 10-day minimum for Wayne County, this does not end the inquiry where venue is challenged.
9. MCL 552.9 further requires that the complainant must have resided in the State of Michigan for 180 days preceding the filing. Although Plaintiff may meet the state residency requirement, her Wayne County residency dates only to approximately October 2025, barely six months before filing, whereas the last shared marital domicile was established in Washtenaw County for approximately eighteen months.

B. Washtenaw County Is the Proper Venue

10. Washtenaw County is the proper venue for this divorce for the following reasons:
 - a. The last shared marital domicile was in Washtenaw County for approximately eighteen months (April 2024 through September 2025);
 - b. Defendant continues to reside in Washtenaw County and has done so for well over 180 days;
 - c. Defendant filed a Complaint for Divorce in Washtenaw County just one day after Plaintiff filed in Wayne County, reflecting essentially simultaneous and independent decisions to pursue divorce;
 - d. Plaintiff's current Wayne County residency is approximately six months old, whereas the parties' most recent shared connection was to Washtenaw County for eighteen months.

C. The Washtenaw County Action Should Take Priority Despite Filing Order

11. While Plaintiff filed her Wayne County action one day before Defendant filed in Washtenaw County, filing order alone does not control the venue analysis. The filings were essentially simultaneous, April 9 and April 10, 2026, and Defendant's Washtenaw County action (Case No. 26-737-DO) involves the same parties and the same marriage. Where, as here, the venue factors overwhelmingly favor Washtenaw County, the county of the marital domicile, the county of Defendant's continuous residency, and the county with the strongest connection to the marriage, the proper remedy is transfer rather than allowing an improperly venued first-filed action to proceed. Allowing parallel proceedings in two counties would waste judicial resources and risk inconsistent rulings.

D. Forum Shopping Should Not Be Rewarded

12. Plaintiff's decision to file in Wayne County appears calculated to take advantage of the existing Personal Protection Order proceeding (Case No. 26-102221-PP) pending in this Court. Filing the divorce in the same county as the PPO, rather than in the county of the marital domicile where the opposing party resides, constitutes forum shopping. Michigan courts have consistently disfavored such tactics.
13. Plaintiff's relatively recent relocation to Wayne County further supports this conclusion.

After two years of shared residency in Washtenaw County, Plaintiff moved to Wayne County only approximately six months before filing. This pattern suggests that Plaintiff selected her venue based on the strategic advantage of the pending PPO proceeding rather than the established marital domicile.

E. Plaintiff's Own Sworn Statements Confirm Wayne County Was Never the Marital Domicile

14. Plaintiff's own sworn statements in related proceedings conclusively establish that the Ross Drive address in Wayne County was never a shared marital residence, thereby eliminating any basis for Wayne County venue premised on a marital connection to that county.
15. In her Petition for Personal Protection Order filed February 20, 2026, in this Court (Case No. 26-102221-PP), Plaintiff stated under oath that "the parties do not currently reside together" and referred to the Ross Drive address as "my home," explicitly excluding Defendant from any residency there.
16. On March 2, 2026, the date of Defendant's release from federal custody, Plaintiff made false statements to the Redford Township Police Department, affirmatively claiming that Defendant had never lived at 26695 Ross Drive. A Redford Township Police report documenting these statements exists and is incorporated herein by reference. Plaintiff further solicited a mutual acquaintance to corroborate these false statements to law enforcement.
17. In the related federal Bivens action, *Rockenhaus v. Agapiou, et al.*, Case No. 2:25-cv-12716 (E.D. Mich.), Plaintiff submitted sworn declarations to the United States District Court for the Eastern District of Michigan in which she represented that Defendant never resided at the Ross Drive address. These sworn statements were made under penalty of perjury pursuant to 28 U.S.C. §1746.
18. Plaintiff cannot now claim that Wayne County is the proper venue for the parties' divorce while simultaneously maintaining, under oath in federal court and on the record with law enforcement, that Defendant never resided at the only Wayne County address associated with this marriage. If Defendant never lived at Ross Drive, as Plaintiff has sworn, then Ross Drive was never a shared marital residence. The only shared marital domicile was 2468 Fernwood Avenue in Washtenaw County.
19. Plaintiff is judicially estopped from taking inconsistent positions across proceedings. Having successfully obtained a PPO based in part on the representation that Defendant did not reside at Ross Drive, and having submitted sworn declarations in federal court reiterating that position, Plaintiff cannot now rely on that same Wayne County address to establish venue for a divorce action. See *Paschke v. Retool Industries, Inc.*, 445 Mich. 502 (1994) (party may not assume inconsistent positions in judicial proceedings to gain unfair advantage).
20. Defendant possesses a valid lease for the Ross Drive property (attached hereto as Exhibit A), which directly contradicts Plaintiff's sworn claims. This lease, combined with Plaintiff's own admissions, demonstrates that Plaintiff has engaged in a pattern of false statements regarding Defendant's residency, statements that were made to gain strategic advantage in multiple proceedings and that now fatally undermine any claim to Wayne County venue.

IV. RELIEF REQUESTED

WHEREFORE, Defendant **Conrad Alan Rockenhaus** respectfully requests that this Honorable Court:

21. Enter an Order transferring this action to the Washtenaw County Circuit Court, 22nd Judicial Circuit, pursuant to MCL 600.1651 and MCR 2.223;
22. Or, in the alternative, dismiss this action in favor of the prior-filed Washtenaw County divorce proceeding, Case No. 26-737-DO; and
23. Grant such other and further relief as this Court deems just and equitable.

Respectfully submitted,

/s/ Conrad A. Rockenhaus

Conrad Alan Rockenhaus, Defendant Pro Se

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Dated: April 15, 2026

EXHIBITS

The following exhibits are attached to or incorporated by reference in this Motion:

- **Exhibit A:** Residential Lease for 26695 Ross Drive, Redford Township, Michigan 48239 (term: September 1, 2025 through August 31, 2026)
- **Exhibit B:** Plaintiff's Sworn Petition for Personal Protection Order, Case No. 26-102221-PP (February 20, 2026) (relevant excerpts)
- **Exhibit C:** Plaintiff's Sworn Declaration filed in *Rockenhaus v. Agapiou, et al.*, Case No. 2:25-cv-12716 (E.D. Mich.) (relevant excerpts)
- **Exhibit D:** Redford Township Police Report, March 2, 2026 (documenting Plaintiff's false statements regarding Defendant's residency)

EXHIBIT A: RESIDENTIAL LEASE SUMMARY

The Residential Lease attached as Exhibit A establishes the following relevant facts:

- **Landlord/Owner:** EJK Group LLC, 26633 Ross Drive, Redford, Michigan 48239
- **Premises:** 26695 Ross Drive, Redford, Michigan 48239
- **Tenants (Residents):** Conrad Alan Rockenhaus and Adrienne Marjorie Rockenhaus, jointly and severally
- **Term:** Twelve (12) months, commencing September 1, 2025 and terminating August 31, 2026
- **Monthly Rent:** \$1,900.00, due the first day of each month
- **Total Move-In Cost:** \$5,280.00 (first month's rent, security deposit, cleaning fee, pet deposit, and prorated rent)
- **Total Consideration:** \$22,800.00 over the lease term
- **Pets:** Lease expressly permits one dog (Toro, black Labrador, age 11) and one cat (Autumn, age 5), both belonging to Defendant Conrad Alan Rockenhaus, with the non-refundable pet deposit waived

The signed Residential Lease is offered to establish that Defendant is a named tenant on the lease for 26695 Ross Drive, contradicting Plaintiff's sworn statements to the Redford Township Police Department and to the United States District Court for the Eastern District of Michigan that Defendant never resided at that address.

